

The Witherspoon Institute

Thomistic Seminar

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From Happiness to Well-Being

Afternoon Session

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Readings:

Virtue and Meaning: A Neo-Aristotelian Perspective, *Ch. 3*

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Other-Regarding Concern

In Chapter 2, I developed an account of the relationship of virtue to happiness according to which we act virtuously for its own sake and where doing so is also constitutive of happiness understood in terms of a normatively higher, nobler, more meaningful mode of life. One concern that often arises here with regard to the Aristotelian focus on an agent's own virtue and happiness – which I briefly raised and discussed in Chapter 2 – is that it can seem fundamentally and problematically self-centered or agent-centered (see Toner 2006; Annas 2008; Angier 2018). Certainly those who work within the Aristotelian tradition will affirm many other-regarding virtues (justice, generosity, honesty, etc.), but the question is: Do these ultimately derive their value from promoting our own happiness or sense of nobility? In other words, just as there is an objection to the instrumentalist account of the relationship of virtue to happiness that it does not provide us with the right reason for acting virtuously, one might similarly object that Aristotelians may treat other-regarding concern in an overly instrumentalized way, and thus fail to show proper concern for others *for their own sake*.

So we must ask: Can we combine the Aristotelian concern for happiness with the idea that we should show concern for others for their own sake? I believe that we can, and the clue for how to do so is found in the constitutive account of the relationship of virtue to happiness. I want to argue here for a constitutive account of the relationship of other-regarding concern to our own happiness or fulfillment: The idea is that we should show concern for others for their own sake on the basis of a strong evaluative sense of their intrinsic worthiness for such concern (i.e., because of inherent human dignity or the sanctity of human life), and doing so appropriately is constitutive of a normatively higher, nobler, more meaningful mode of life. I will also seek to show the difference this makes for ensuring that we regard all human beings as fully amongst us, for making sense of and defending moral absolutes, and for properly responding to the

demands for universal and particular concern. This constitutive account is overlooked by neo-Aristotelian ethical naturalists for whom the other-regarding virtues are seen as virtues primarily because of their role in promoting the “good functioning of our social group,” which is seen as important for achieving our own good as rational social animals.¹ In other words, as rational social animals we can only achieve our own flourishing through the shared practice of other-regarding virtues that promote the good of others and the common good of our communities. The best account of this, I believe, is given in MacIntyre’s *Dependent Rational Animals*. I want to begin by outlining his account, and then I will discuss how we need to go beyond it.

MacIntyre on Other-Regarding Concern

MacIntyre’s account can be seen as filling out Aristotle’s view that human beings are by nature “political [i.e., communal] animals” because of our lack of self-sufficiency for developing and achieving our fullest human potential, which is only made possible by living in community with others. Aristotle says of the *polis* (i.e., the political community): “while coming into being for the sake of living, it exists for the sake of living well” (P I.2, 1252b29–30).

MacIntyre begins by noting the various ways that we are all vulnerable to affliction (e.g., sickness, injury, disability, malnutrition, aggression, and neglect), and thus we depend upon the protection and care of others for our survival as well as our flourishing. This dependency is most obvious in early childhood and old age, but it can also be present at different points throughout our lives, and some people are afflicted with severe disability for their entire lives. MacIntyre therefore contends that, in order to achieve our good as human beings, we must participate in “a network of relationships of giving and receiving”:

We receive from parents and other family elders, from teachers and those to whom we are apprenticed, and from those who care for us when we are sick, injured, weakened by aging, or otherwise incapacitated. Later on others, children, students, those who are in various ways incapacitated, and others in gross and urgent need have to rely on us to give. Sometimes those others who rely on us are the same individuals from whom we ourselves received. But often enough it is from one set of individuals that we receive and to and by another that we are called on to give. (1999: 99)

¹ The phrase “good functioning of our social group” is adapted from Hursthouse 1999: 202.

MacIntyre appeals here to a normative expectation of *asymmetrical reciprocity*. We incur a debt in virtue of what we have received, but often we will have to pay it forward. Even where we give back to those from whom we have received, what we will need to give might be very different: as with adult children caring for their elderly parents. Moreover, sometimes what we are called upon to give can be much more demanding. And we don't always know to whom we will be called upon to give or what they will need:

We can set in advance no limit to those possible needs, just as those who cared for us could at an earlier time have set no limits to what our needs might have been. . . . And the kind of care that was needed to make us what we have in fact become, independent practical reasoners, had to be, if it was to be effective, unconditional care for the human being as such, whatever the outcome. And this is the kind of care that we in turn now owe or will owe. (100)

In addition to appealing to the moral claim that it is “in virtue of what we have received that we owe” (101), MacIntyre supports such unconditional care for others with an appeal to *empathetic identification*. He writes: “Of the brain-damaged, of those almost incapable of movement, of the autistic, of all such we have to say: this could have been us. Their mischances could have been ours, our good fortune could have been theirs” (100–1).

According to MacIntyre, for each of us to achieve our own good what is required is that others make our good their own, and we must do the same in turn, though again this will often involve an asymmetrical reciprocity. And so this cannot be strictly a matter of calculated advantage. Someone who “consults the good of others, only because and insofar as it is to her or his good to do so,” is someone who is “deficient in the virtues” (108). So we must become the kind of persons who make others' good our own good and who can participate appropriately in a network of relationships of “uncalculated giving and graceful receiving” (121). This will require acquiring and exercising “the virtues of acknowledged dependence.”

While gratitude is the key virtue of acknowledged dependence with regard to receiving benefits from others, the key virtue with respect to giving to others is “just generosity.” This is a form of generosity that “I owe to all those others who also owe it to me”: “Because I owe it, to fail to exhibit it is to fail in respect of justice; because what I owe is uncalculating giving, to fail to exhibit it is also to fail in respect of generosity” (120–1). MacIntyre develops upon Aquinas' view of how a single action can exemplify different virtues, and he says that what just generosity often requires is

actions that “are at once just, generous, beneficent, and done from pity,” and involve “attentive and affectionate regard” for the person in need (121–2). Although “the practices of receiving and giving informed by particular just generosity are primarily exercised towards other members of our own community related to us by their and our roles,” MacIntyre says: “it is important to the functioning of communities that among the roles that play a part in their shared lives there should be that of ‘the stranger’, someone from outside the community who has happened to arrive amongst us and to whom we owe hospitality, just because she or he is a stranger” (122–3). The scope of just generosity also extends to being responsive to the dire need of any human being, and here just generosity includes the virtue of “humanity” (or humaneness), which is a virtue “without which we will be defective in our social relationships” (123). Aristotle also recognizes something like this in his account of friendship in the *Nicomachean Ethics* when he speaks of a friendship for humanity (i.e., “philanthropy”): “One may also observe in one’s travels to distant countries the feelings of recognition and affiliation that link every human being to every other human being” (NE VIII.1, 1155a21–2).²

Another important virtue here, MacIntyre thinks, is what Aquinas calls *misericordia*, that is, pity or compassion, which is connected to charity or love of neighbor and also extends beyond one’s community. We see this illustrated, for example, in the Parable of the Good Samaritan in the Gospel of Luke (10:25–37), which I will discuss later. MacIntyre writes:

Misericordia has regard to urgent and extreme need without respect of persons. It is the kind and scale of the need that dictates what has to be done, not whose need it is. And what each of us needs to know in our communal relationships is that the attention given to *our* urgent and extreme needs, the needs characteristic of disablement, will be proportional to the need and not the relationship. But we can rely on this only from those for whom *misericordia* is one of the virtues. So communal life itself needs this virtue that goes beyond the boundaries of communal life. (124)

Misericordia recognizes that the urgent and extreme need of another, even a stranger, “provides a stronger reason for action than even claims based upon the closest of family ties.” Following Aquinas, MacIntyre says: “*Misericordia* is grief or sorrow over someone else’s distress . . . just insofar as one understands the other’s distress as one’s own,” which may occur “because of some preexisting tie to the other – the other is already one’s

² This translation is by Martha Nussbaum in Nussbaum 1987.

friend or kin – or because in understanding the other's distress one recognizes that it could instead have been one's own" (125).

For MacIntyre, then, a key index for the well-being of any community based on a network of relationships of giving and receiving through which human beings achieve their good is how its members treat the young, the old, the severely afflicted, the stranger, and those in dire need (regardless of having any prior relationship to them or not) (see 108–9).

There is much that is important in the foregoing account, however I want to argue that we should go beyond it. I will discuss four key limitations of it having to do with: (1) intrinsic worth; (2) solidarity with the severely afflicted and other marginalized humans; (3) moral absolutes; and (4) universal and particular other-regarding concern. The latter three points build on the first. Although I am focusing on MacIntyre's account, the limitations that I will discuss can also be seen as applying to accounts of other-regarding concern provided by other neo-Aristotelians, such as Foot and Hursthouse, who seek to found ethics on a quasi-scientific understanding of human nature and human flourishing, which stresses an analogy between human flourishing and the flourishing of other living things. As mentioned, I focus on MacIntyre because I think he provides the strongest account of other-regarding concern within this strand of neo-Aristotelian ethics.

Intrinsic Worth: Dignity and Sanctity

My fundamental complaint with this strand of neo-Aristotelian ethics is that it does not go far enough in exploring the engaged (or first-personal) evaluative standpoint from within our human form of life. In regard to the issue of other-regarding concern, what is conspicuously missing in MacIntyre's account and that of neo-Aristotelian ethical naturalists of his ilk is something that should be a key part of our ethical experience: namely, the strong evaluative sense that human beings are *intrinsically worthy* of concern *for their own sake*. This intrinsic worthiness can be characterized in terms of the strong evaluative categories of *dignity* (which conveys a respect-worthiness) or *sanctity* (which conveys a reverence-worthiness), as when we speak of intrinsic human dignity or the sanctity of human life.³

³ Claims about human dignity are often regarded as the basis of human rights claims. In *After Virtue*, MacIntyre says: "there are no such rights, and belief in them is one with belief in witches and in unicorns" (2007 [1981]: 69). Lest one thinks that he may have had a change of mind over the years, we should also note that MacIntyre makes a similar claim in his most recent book: "My quarrel [with those who advocate for human rights] . . . is with their advancing the thesis that appeals to human

In either case we see ourselves as recognizing a normative demand upon us for attitudes and actions that are properly responsive to the special value of human life. Moreover, this normative demand is seen as being “there in any case, whether or not we are responsive to it,” and it calls upon us to show concern for others for their own sake. But this is not opposed to our own fulfillment. Rather, as in the case of acting for the sake of the noble (discussed in Chapter 2), acting for the sake of others (in light of their intrinsic dignity or sanctity) is constitutive of a normatively higher, more fulfilling, more meaningful mode of life. So we can say that we act both for the sake of others and our own.

We can fill this out by appealing to the idea of a “constitutive good,” which I introduced in Chapter 1. As discussed there, constitutive goods are a fundamental type of strong good. They provide answers to questions such as: “What is worthy of my love?,” “What commands my respect (or reverence)?,” and the like. And answering these questions helps us to answer the questions “What ought I *do*?” and “How ought I to *be*?” The key idea in regard to constitutive goods is that they *constitute* the strong goods that define for us the good life, that is, a normatively higher, nobler, more meaningful mode of life. For instance, if we regard some conception of our own human potential as commanding our admiration and respect, then we can see how this constitutes certain goods that make up the good life: namely, the virtues of character and intellect whereby we fulfill this potential. Such virtues are the virtues they are precisely because they are modes of being properly responsive to our own human potential as a constitutive good (i.e., they properly respond to the admirableness of what a human being can become) and thereby they realize a normatively higher, nobler, more fulfilling mode of life. We can regard this as the standard Aristotelian conception of a constitutive good.

However, we can and, I am contending, we should also see other human beings as constitutive goods, that is, as love-worthy, respect-worthy, or reverence-worthy, and as also constituting certain goods that make up the good life: namely, other-regarding virtues such as justice, generosity, kindness, loyalty, friendship, etc. Exercising such other-regarding virtues involves being properly responsive to the love-worthiness, respect-worthiness, or reverence-worthiness of other human beings, and in doing so we

rights, understood as rights attaching to each and every human individual qua human individual, provide justification for asserting and enforcing [unconditional] prohibitions. Such appeals could only function as justifications, if there were sound arguments for asserting the existence of such rights. And there are no such arguments” (2016: 78). But MacIntyre does nothing here to explore why one might believe he or she has good reason to recognize the claims of human dignity.

realize a normatively higher, nobler, more fulfilling mode of life. Specifying how other human beings are constitutive goods will require saying what it is about human beings and their place in the cosmos that makes them worthy of love, concern, respect, or reverence: for example, we can say that it is something about having the capacity for rationality, morality, spirituality, creativity, and love, which are seen as capacities for a higher mode of life. Sometimes this is framed in a religious way by saying that human beings are made in the image of God, and sometimes it is framed in a non-religious way, though this will still require some picture of the place of human beings in the cosmos. (In Chapter 4, I will explore further the relevance of our cosmic outlooks for the moral life.)⁴

The focus here is on how human beings can be constitutive goods, but we should note (as I also did in Chapter 1) that non-human beings can be constitutive goods. For instance, non-human animals can be seen as respect-worthy – for example, in virtue of the value of life itself as expressed in each individual life-form and its distinct capacities – even if we think that the respect (or reverence) owed to human beings is greater. Non-human animals as constitutive goods can constitute virtues such as compassion and friendliness with regard to non-human animals as goods that make up the good life for human beings. Likewise, we can regard the environment as a constitutive good, that is, as being worthy of awe, wonder, and respect due to its beauty, grandeur, intricateness, etc., and so as constituting certain goods that define for us the good life: namely, virtues such as care and respect for the natural world and proper awe and wonder.⁵ If we are theists, then we will also regard God as a constitutive good, that is, as being worthy of our love, reverence, and allegiance due to God's perfect goodness, love, wisdom, etc., and so as constituting certain goods that define for us the good life: namely, virtues such as piety, humility, existential gratitude, and loving devotion. We can also speak of the truth as being a constitutive good and an object of devotion, respect, and even reverence. Honesty, for example, is a virtue not only because it shows respect for others but also because, properly understood, it shows respect for and devotion to the truth itself. Truth as a constitutive good is

⁴ In Chapter 4, I will take on McDowell's "quietism," which denies the need for any ontological account of human beings and their place in the cosmos for validating and making sense of our ethical sensibilities.

⁵ The standard neo-Aristotelian virtue ethic approach to environmental ethics adopts a human-centered approach to the environment, where concern for the environment has to do with how it affects our flourishing as human beings (see Rolston 2005; Sandler 2005: 4–5; Hursthouse 2007b: 158–61, 169–70).

also constitutive of the good of forms of life that seek to know and make manifest the truth. In the final chapter I will discuss one such form of life: namely, the philosophical life.

In each of these cases we can see how the virtues are modes of proper responsiveness to a constitutive good, which involves concern for it for its own sake and which contributes to a normatively higher, more fulfilling mode of life (i.e., the good life). This account of constitutive goods allows us to go beyond instrumentalized accounts of the other-regarding virtues, which the quasi-scientific strand of neo-Aristotelian ethical naturalism tends toward. We see this in Hursthouse's account of other-regarding virtues promoting the "good functioning of our social group," which is seen as important for achieving our own good as rational social animals. The other-regarding virtues are also said to make possible "one of our greatest sources of characteristic enjoyment" as social animals, namely, "loving relationships" (1999: 209). MacIntyre's account of a network of relationships of giving and receiving and the virtues of acknowledged dependence that sustain them is also ultimately justified in terms of promoting our own good. He does affirm that when we acquire the relevant other-regarding virtues we will perform them for the sake of others insofar as we have identified our good with their good: "[Acts] of generosity, justice, and compassion are done for the sake of others and are worth doing in and for themselves. It is therefore always at the level of practice a sufficient answer to the question: 'Why did you do that?' to reply 'Because it was just.'" However, MacIntyre goes on to say: "at a more theoretical level we may and must respond to the question 'Why is this a sufficient answer?' And what makes it a sufficient answer is that it is only through the acquisition and exercise of the virtues that individuals and communities can flourish in a specifically human mode" (1999: 112). So the ultimate justification is instrumental and there is no indication that these others are to be treated in certain ways in virtue of their intrinsic human dignity or sanctity.

Such talk of "human dignity" or "the sanctity of human life" has not generally had much of a place in Aristotelian ethics, going back to Aristotle himself, and Aristotelians who have appealed to such concepts have often drawn on non-Aristotelian sources in doing so, such as Jewish, Christian, Kantian, and Stoic thought. We see this, for example, with Martha Nussbaum, who draws on Kantian and Stoic sources in her appeals to human dignity (see 1996; 2001 [1986]: xviii–xxiv; 2007: 159–60). Another interesting case is the recent attempts to appropriate Stephen Darwall's Kantian account of "the second-person standpoint" (2006;

2010) for an Aristotelian virtue ethic by defending a two-tiered account. The idea here is that, because we are social animals and can only be fulfilled in social relationships, we have reason to adopt the second-person standpoint – where we have an “I-Thou” relationship – and recognize the moral claims that others make on us from that standpoint.⁶ So on one level – the second-person standpoint – we recognize the claims others make upon us. However, our reason for adopting this standpoint is justified on another level: namely, our desire for happiness or fulfillment as social animals (see LeBar 2009; 2015; Russell 2012: 32–5). But given that our ultimate reason for adopting this standpoint is our desire for our own fulfillment, it does not seem to give proper recognition to the claims of human dignity as making demands upon us that are “there in any case, whether or not we are responsive to them,” or whether or not we adopt a second-person standpoint. Some have seen Aristotelian virtue ethics as incompatible with recognizing the claims of human dignity (see Cokelet 2012; 2014). However, I see no reason why appeals to human dignity or the sanctity of human life cannot be incorporated into a broadly Aristotelian framework that aims at the good life through cultivation of the virtues and which seeks, where possible, to “save the appearances” (e.g., regarding human dignity) that arise for us from within a properly formed evaluative standpoint.⁷ Indeed, I am arguing in this chapter that they should be incorporated, and this adds a further element of “enchantment” to my version of Aristotelian ethics: It amounts to recognizing a self-transcending source of meaning or value, which is “there in any case, whether or not we are responsive to it,” but to which we ought to be responsive. However, I also think this requires that we go beyond the quasi-scientific strand of neo-Aristotelian ethics represented by Foot, Hursthouse, MacIntyre, and others, which identifies the virtues as those traits which are conducive to our flourishing as human beings, where this is understood on analogy with the flourishing of other living things.

Some of these neo-Aristotelians do sometimes give recognition to the claims of human dignity or the sanctity of human life, which I think is not surprising given how the experience of human dignity or the sanctity of human life is central to proper ethical experience, or so I am arguing. For

⁶ Darwall writes: “By the ‘second-person standpoint,’ I mean the perspective you and I take up whenever we address (putatively valid) claims or demands to someone, whether explicitly, in speech, or implicitly, in thought, whether to others or to ourselves (as in self-addressed feelings of guilt)” (2010: 216).

⁷ See fn. 19 in Chapter 1, where I cite Nussbaum’s remarks on Aristotle’s philosophical methodology of beginning from the “appearances” (*phainomena*) and trying to “save” what is true in them.

instance, in an essay entitled “Human Dignity and Charity” (2007a), which was published after *On Virtue Ethics*, Hursthouse endorses a view of human dignity that human beings are said to possess simply in virtue of being human and which she sees as having its roots in the Christian tradition rather than the Greek tradition.⁸ However, in this essay she does not attempt to explain how this view fits with the ethical naturalism that she defends in *On Virtue Ethics* (she also does not appeal to such an account of human dignity in the latter). Consider also Anscombe: She suggested the disenchanted or quasi-scientific approach (at least for those who are not theists), but she does not ultimately take this approach herself. We have already had occasion in Chapter 1 to mention her remarks on “mystical perception,” which recognizes a special, non-instrumental value – what I think can be called “sacredness” – in human life and human sexuality, and which is a perception she thinks is available to everyone (“it is as common as humanity”) and grounds “supra-utilitarian” virtues, that is, virtues that are not defined merely by their conduciveness to one’s flourishing *qua* human being (2008: 186–8). But this seems precisely to

⁸ Hursthouse writes: “At least one big difference [for] Western thought that the development of Christianity made was that however wicked and debased you might have made yourself, you still had not lost irrevocably, the thing that made you, as a human, different from other animals. *Every* human being is to be loved, is worthy of love, simply because they *are* human, made in God’s image . . . [This is] something that the ancient Greeks would have regarded as quite insane” (2007a: 61). Hursthouse is not religious, though she says: “I came to this conversation [about human dignity] in favour of the Greek strand [of thought about dignity] but . . . came away from it in favour of the Christian one” (68). She does not explicitly say what is the basis of human dignity, but presumably for her it is rooted in our distinctiveness as *rational* animals (see 60–1). This essay perhaps marks a development in her views. In her earlier essay “Virtue Theory and Abortion,” Hursthouse tried to sidestep the issue of the moral status of early human life as a “metaphysical question” that is too “recondite” and “simply not relevant to the rightness or wrongness of abortion” (1991: 235). But she also writes: “The fact that the premature termination of a pregnancy is, in some sense, the cutting off of a new human life, and thereby, like the procreation of a new human life, connects with all our thoughts about human life and death, parenthood, and family relationships, must make it a serious matter. To disregard this fact about it, to think of abortion as nothing but the killing of something that does not matter, or as nothing but the exercise of some right or rights one has, or as the incidental means to some desirable state of affairs, is to do something callous and light-minded, the sort of thing that no virtuous and wise person would do. It is to have the wrong attitude not only to fetuses, but more generally to human life and death, parenthood, and family relationships” (238). Still, Hursthouse allows that abortion can be the right decision if having the child would be overly burdensome, even though by cutting human life short “some evil has probably been brought about” (241–3). However, in taking this position she clearly *is* presupposing some view of moral status since she is not saying that new human life has no moral status, and she is also not saying it has as much status as an infant, since she would not allow for infanticide when someone discovers a newborn is more burdensome than he or she had realized (see Lu 2011: 109–13). But insofar as we think (as with “the Christian strand” of thought) that human beings have a special dignity simply in virtue of being human and not only because of what they achieve, then the unborn should be seen as having the same basic moral status (Hursthouse 2007a: 70–1 does seem to indicate a stronger opposition to abortion). See Anscombe’s remarks in what follows.

involve an appeal to a “peculiar” or “mesmeric” ought, which in “Modern Moral Philosophy” she thought should be jettisoned in favor of a more disenchanting Aristotelian approach, at least by those who have rejected a divine law conception of ethics. It is worth considering here two other occasions where Anscombe maintains that respect and reverence are owed to human life. One pertains to the issue of abortion, and the other has to do with the issue of euthanasia. In “The Dignity of the Human Being,” she writes:

So a woman of today may find a possibility of becoming pregnant, letting the baby grow to twenty eight weeks (because bigger ones are worth more) and then going somewhere where they will pay her for a late abortion, which yields the foetus for resale, say, as valuable material. If you act so, are you not shewing that you do not regard that human being with any reverence? Few will fail to see that. But the same is true of one who has an abortion so that she can play in a tennis championship; or for any reason for which someone might choose to destroy the life of a new human being. This lack of reverence, of respect for that dignity of human nature so wonderfully created by God, is a lack of regard for the one impregnable equality of all human beings. Lacking it, you cannot revere the dignity of your own human-ness, that is the dignity of that same human nature in yourself. You may value yourself highly as a tennis player or a natural scientist, but without a change of heart you cannot value yourself as being a human, a *Mensch*. For you have shewn the value you set on a human life as such. You are willing to extinguish it as suits you or as suits the people who want you to do so. (2005: 72)

And in “Murder and the Morality of Euthanasia,” Anscombe writes:

Whatever blasphemes the spirit in man is evil, discouraging, at best trivializing, at worst doing dirt on life. Such is the considered recommendation of suicide and killing in face of suffering. . . . [Propaganda] in favour of death as a remedy . . . is irreligious, in a sense in which the contrasting religious attitude – one of respect before the mystery of human life – is not necessarily connected only with some one particular religious system. Propaganda puts in the mouth of the potential suicide: “I belong to myself, and I can set conditions on which I will consent to go on living”. Life is regarded as a good or bad hotel, which must not be too bad to be worth staying in. To the man of religious feeling the claim lacks reverence and insight. A religious attitude may be merely incipient, prompting a certain fear before the idea of ever destroying a human life, and refusing to make a “quality of life” judgment to terminate a human being. Or it may be more developed, perceiving that men are made by God in God’s likeness, to know and love God. . . . Such perception of what a human being is makes

one perceive human death as awesome, human life as always to be treated with a respect which is a sign and acknowledgment of what it is for. (2005: 269–70)

The issue that I want to bring out in regard to these passages has to do with the sort of conceptual resources available to us as we think and debate about other-regarding concern. In particular: Do we have a way of thinking about human life as such as deserving of respect or reverence in virtue of its inherent dignity or sanctity? These are ways of thinking that seem lost or overlooked among most neo-Aristotelians because of their focus on how the virtues are conducive to one's flourishing. And perhaps one might think they are lost for us if we no longer affirm a religious worldview, as Anscombe's appeals to God in these passages could suggest. However, although Anscombe refers to the "respect before the mystery of human life" as a "religious attitude" or "religious feeling," she does say that this "is not necessarily connected only with some one particular religious system." Moreover, the appeal to this "religious attitude" or "religious feeling" seems equivalent to Anscombe's appeal to "mystical perception," which, as we saw, she thinks is available to everyone, whether or not one is religious in a conventional sense.

I want to try to bring out how we can come to see human life in this way by focusing on the issue of the care we should have for those with severe affliction, which we have seen is a concern for MacIntyre. However, I want also to suggest that his account for why we should care for those with severe affliction leaves something to be desired.

Fully amongst Us: Solidarity with the Severely Afflicted and Other Marginalized Humans

As we saw, for MacIntyre the reasons why we can come to owe unconditional care for those with severe affliction (e.g., severe intellectual disability) have to do with *asymmetrical reciprocity* (i.e., we owe in virtue of what we have received, but what we owe can be very different from what we have received and to whom we owe may be different from those from whom we have received) and *empathetic identification* (where we have the thought with regard to those who experience misfortune: "it could have been and could be me"). Both contribute to a social network of giving and receiving, which enables individuals and communities to "flourish in a specifically human mode." However, there is no appeal here to the equal intrinsic dignity or sacredness of human beings *qua* human being, and I want to suggest this omission is significant.

In *A Common Humanity*, Raimond Gaita discusses his experience of working at a psychiatric ward when he was seventeen. The patients, he says, “appeared to have irretrievably lost everything which gives meaning to our lives” and “had no grounds for self-respect insofar as we connect that with self-esteem; or, none which could be based on qualities or achievements for which we could admire or congratulate them without condescension” (1998: 17–18). In fact, the patients were often treated as less than fully human: for example, when they soiled themselves, as sometimes occurred, they were told to undress and step under a shower and were then mopped down “as zoo-keepers wash down elephants” (17). Gaita notes – with admiration – that there were a few psychiatrists who worked to improve the patients’ conditions and “spoke, against all appearances, of [their] inalienable *dignity*” (18). But then one day a nun came to visit the ward:

[Everything] in her demeanour towards them – the way she spoke to them, her facial expressions, the inflexions of her body – contrasted with and showed up the behaviour of those noble psychiatrists. She showed that they were, despite their best efforts, condescending, as I too had been. She thereby revealed that such patients were, as the psychiatrists and I had sincerely and generously professed, the equals of those who want to help them; but she also revealed that in our hearts we did not believe this. (18–19)

Gaita marvels at the power of the nun’s love – as expressed through her demeanor – “to reveal the full humanity of those whose affliction had made their humanity invisible” (20).

It is important to note that Gaita, who is not religious in any conventional sense, does not think this revelation of full humanity depends upon sharing the nun’s religious views, such as the belief that the patients “were all God’s children and equally loved by him” (21). While many religious people might appeal to the idea that all human beings are sacred in order to explain what is motivating the nun’s behavior, Gaita thinks that only a religious person “can speak seriously of the sacred,” though “such talk informs the thoughts of most of us whether or not we are religious, for it shapes our thoughts about the way in which human beings limit our will as does nothing else in nature.” Later he says: “Because of the place the impartial love of saints has occupied in our culture, there has developed a language of love whose grammar has transformed our understanding of what it is for a human being to be a unique kind of limit to our will.” However, Gaita thinks that the non-religious person will often have to find some not fully adequate

substitute for the religious language of the sacred, such as that all human beings are “inestimably precious,” “ends in themselves,” “owed unconditional respect,” or “possess inalienable dignity.” For Gaita, “these are ways of trying to say what we feel a need to say when we are estranged from the conceptual resources we need to say it” and none of them has “the simple power of the religious way of speaking” (23–4).

I don’t think it is entirely right to say that only a (conventionally) religious person “can speak seriously of the sacred,” since the language of the sacred can be used to describe that which is experienced as reverence-worthy and thereby regarded as irreplaceable and inviolable (“a unique kind of limit to our will”). As suggested by Anscombe, we can say that even a (conventionally) non-religious person is capable of a kind of religious feeling or mystical perception in recognizing the reverence-worthiness of human life, though we might also say that to have such feeling and perception is to be religious in a broad, non-conventional sense. There are of course questions that can arise about what world-picture or cosmic outlook can best ground and make sense of this moral phenomenology (this issue will be taken up in Chapter 4), but here we are simply seeking to attend to the phenomenon.

What I want to focus on in Gaita’s discussion of the nun’s saintly love is a key lesson that he came to derive from this encounter. He writes:

Later, reflecting on the nun’s example, I came to believe that an ethics centered on the concept of human flourishing does not have the conceptual resources to keep *fully amongst us*, in the way the nun had revealed to be possible, people who are severely and ineradicably afflicted. Only with bitter irony or unknowing condescension could one say the patients in that ward had any chance of flourishing. Any description of what life could mean to them invited the thought that it would have been better for them if they had never been born. Later, such thoughts about such lives were commonly voiced, first in discussions of abortion and then in discussions of euthanasia. It would be no fault in any account of ethics if it failed to find words to make fully intelligible what the nun revealed, for she revealed something mysterious. But there are philosophies that leave or create conceptual space for such mystery, and there are some which close that space. Most do not even see the need for it. (19; my emphasis; cf. 2004 [1991]: 25–6)

In these remarks, Gaita certainly has Peter Singer in mind, who is notorious for his permissive utilitarian stances on human killing, including countenancing the intentional killing of what he calls “defective infants,” provided a quality of life assessment determines that their lives are not

worth living (Singer 1993 [1980]: chs. 4–7).⁹ Singer clearly has no conceptual space for a sense of the mysteriousness or sacredness of human life, as we see when he remarks: “The traditional ethic [that endorses the sanctity of human life] is still defended by bishops and conservative bioethicists who speak in reverent tones about the intrinsic value of all human life, irrespective of its nature or quality. But, like the new clothes worn by the emperor, these solemn phrases seem true and substantial only while we are intimidated into uncritically accepting that all human life has some special dignity or worth” (1995: 4). Gaita sees a kind of moral (and we might also say spiritual) blindness here. Elsewhere he says of “those practical philosophers” – and he surely has Singer in mind – “who have been in the forefront of the argument to relax the conditions under which it is permissible to kill people”: They have “no sense of awe in the face of the questions they have raised, and no sense of humility in the face of the traditions they condescendingly dismiss. They are aggressively without a sense of mystery” (2004 [1991]: 322).

But it is not only utilitarians who appear to have no conceptual space for a sense of the mysteriousness or sacredness of human life; this also seems to be the case for neo-Aristotelian ethical naturalists who define the virtues solely with reference to a conception of human flourishing that is understood on analogy with the flourishing of other living things. As I have said, among those who adopt this approach I think MacIntyre provides the best account of other-regarding concern with his appeals to asymmetrical reciprocity and the empathetic thought that someone else’s affliction could have been (or could be) mine. However, without also appealing to the intrinsic dignity or sacredness of all human life, it seems that we lack the conceptual resources for fending off the thought that it would have been better if those with severe affliction had never been born. Moreover, if our concern for others is ultimately justified through an appeal to our own flourishing, then it is difficult to see how we can “keep fully amongst us” those who are prevented from flourishing *qua* human being. It seems that the quasi-scientific form of neo-Aristotelian ethical naturalism closes the conceptual space for appeals to the intrinsic dignity or sanctity of all human life, and those who adopt this form of ethical naturalism appear

⁹ The language of “defective infants” was used in the first edition, but he switched to speaking about “disabled infants” in the second edition. For more on this, see Laing 1997. I should mention that Aristotle also notoriously endorsed the practice of infanticide for infants with disabilities; see *Politics* VII.16; see also Lu 2013.

not to see the need for such a conceptual space (otherwise they would go beyond such a quasi-scientific approach, as we see Anscombe does in her appeals to mystical perception and religious feeling).

I think Gaita's appeal to the example of saintly love offers one important route into appreciating this conceptual space and toward ultimately inhabiting it. But there are other routes. In her essay "The Importance of Being Human," Cora Diamond, for example, appeals to works of literature, such as the novels of Dickens and Dostoevsky, in order imaginatively to bring into view the special value of humanity. Here she speaks of "[the] sense of mystery surrounding our lives, the feeling of solidarity in mysterious origin and uncertain fate: this binds us to each other, and the binding meant includes the dead and the unborn, and those who bear on their faces 'a look of blank idiocy', those who lack all power of speech, those behind whose vacant eyes there lurks a 'soul in mute eclipse'" (1991: 55). Unfortunately, we must add that the special dignity or sanctity of human life is something that we can come to recognize not only through witnessing acts of saintly love or experiencing human solidarity, but also through experiencing remorse or horror at actions that violate such dignity or sanctity. Indeed, we need an account of the ethical life that can make sense not only of great good (e.g., saintly love) but also of great evil (murder, rape, torture, etc.), and for both it seems we need to make appeal to the concept of the sacred or the reverence-worthy.¹⁰

Moral Absolutes

These remarks point to another area where I think we need to go beyond the quasi-scientific, disenchanted form of neo-Aristotelian ethical naturalism: namely, we should recognize a realm of moral absolutes. This form of ethical naturalism has had difficulty accommodating moral absolutes, and I will suggest that this is because it has not made conceptual space for the sacred or the reverence-worthy. As aforementioned, the idea of sacredness

¹⁰ Doug Rasmussen and Doug Den Uyl refer to this as the issue of "big morality." They raise the concern that there is perhaps something too tame about an ethical perspective founded solely on the concept of human flourishing, as it does not seem able to account for the extremes of good (e.g., Jesus and Socrates) and evil (e.g., Hitler and Stalin), since "promoting [or attaining] flourishing" does not seem to capture the goodness of extreme good and "impeding flourishing" does not seem to capture the badness of extreme evil (2016: 320). Raimond Gaita would second this concern; see the chapters "Goodness Beyond Virtue" and "Evil Beyond Vice" in Gaita 1998. I raised this issue earlier (in Chapter 1) with regard to whether Philippa Foot's ethical naturalism can make sense of the horror she felt at the Holocaust, which led her to oppose moral subjectivism, and I argued that it cannot.

carries with it a sense of inviolability; it conveys a kind of boundary marker that ought never to be crossed (i.e., it is “a unique kind of limit to our will”). In what follows I will focus on moral absolutes understood as absolute *prohibitions*: I want to defend the view that there are some actions – for example, murder, rape, torture, etc. – that are *never to be done*. In other words, there is something that should be regarded as inviolable here. In the following section I will also explore whether there are some actions – for example, helping someone in dire need (as in the Good Samaritan case) – that are strictly *to be done*.¹¹ I want to suggest that there are, but such cases are informed by the particularities of circumstance in a way that absolute prohibitions are not. But I think we can also speak of a moral absolute here if we mean by this a kind of moral necessity.

In exploring the issue of absolute prohibitions, I want to return to Anscombe’s “Modern Moral Philosophy.” As discussed in Chapter 1, Anscombe makes a *disenchanting* move in this essay when she suggests that secular moral philosophers should jettison any special “moral” sense of “ought” that is supposed to contain some “peculiar” or “mesmeric” force, since she thinks that this sense of moral obligation is derived from a divine law conception of ethics. In other words, she wants us to acknowledge the full extent of the disenchantment that she thinks in fact occurs if we have abandoned theism. But she does not think that we need to accept the more extreme form of disenchantment that would involve rejecting all claims of objectivity in ethics. Rather, she suggests that we can recover an ordinary sense of “ought” by focusing on facts about what a human being needs in order to flourish *qua* human being, where the virtues are thought to be central to what a human being needs. This suggestion for a recovery of something like Aristotle’s conception of ethics has proven to be the most influential aspect of Anscombe’s essay. However, this isn’t Anscombe’s greatest concern in the essay, which instead has to do with consequentialist thinking that rejects absolute prohibitions.

One of Anscombe’s main theses in “Modern Moral Philosophy” is that “differences between the well-known English writers on moral philosophy from Sidgwick to the present day are of little importance,” because, in essence, they are all consequentialists of some form and thus show a “corrupt mind” (1981: 26, 40). She writes:

¹¹ Note that I am focusing here on actions. If we think instead about life-orientations, then it seems pretty straightforward and non-controversial to say that it is a moral necessity that we orient our lives toward the good.

[Every] one of the best known English academic moral philosophers has put out a philosophy according to which, e.g., it is not possible to hold that it cannot be right to kill the innocent as a means to any end whatsoever and that someone who thinks otherwise is in error. . . . Now this is a significant thing: for it means that all these philosophies are quite incompatible with the Hebrew-Christian ethic. For it has been characteristic of that ethic to teach that there are certain things forbidden whatever consequences threaten, such as: choosing to kill the innocent for any purpose, however good . . . [It] would [take] a certain provinciality of mind not to see this incompatibility as the most important fact about these philosophers, and the differences between them as somewhat trifling by comparison. (33–4)

In referring here to the “Hebrew-Christian ethic,” Anscombe is appealing to a divine law conception of ethics. But does she allow that other conceptions of ethics, such as the disenchanted form of Aristotelian ethics that she recommends to secular moral philosophers, could also reasonably affirm absolute prohibitions? Anscombe is in fact skeptical.

Toward the end of the essay, Anscombe raises the question “whether one might ever need to commit injustice, or whether it won’t be the best thing to do?” For her, a paradigm case of injustice is the intentional taking of innocent human life (she also mentions the judicial condemnation of someone known to be innocent as another paradigm case). Among the different possible replies to this question, Anscombe mentions the following:

One man – a philosopher – may say that since justice is a virtue, and injustice a vice, and virtues and vices are built up by the performances of the action in which they are instanced, an act of injustice will tend to make a man bad; and essentially the flourishing of a man *qua* man consists in his being good (e.g. in virtues); but for any X to which such terms apply, X needs what makes it flourish, so a man needs, or ought to perform, only virtuous actions; and even if, as it must be admitted may happen, he flourishes less, or not at all, in inessentials, by avoiding injustice, his life is spoiled in essentials by not avoiding injustice – so he still needs to perform only just actions. That is roughly how Plato and Aristotle talk. (41)

Plato and Aristotle do indeed appear to acknowledge absolute prohibitions. For instance, Plato has Socrates say in the *Gorgias* that it is better to suffer evil than to do evil (469c), which is an idea central to any view embracing absolute prohibitions. Similarly, Aristotle remarks: “there are some things we cannot be compelled to do. Rather than do them we should suffer the most terrible consequences and accept death” (NE III.1, 1110a26–8). He mentions the act of killing one’s own mother as such a case. Elsewhere

Aristotle qualifies his view of the virtues of character as consisting in attaining the mean between excess and deficiency in some feeling or action by saying: “[Not] every action or feeling admits of the mean. For the names of some automatically include baseness – for instance, spite, shamelessness, envy [among feelings], and adultery, theft, murder among actions. For all of these and similar things are called by these names because they themselves, not their excesses or deficiencies, are base. Hence in doing these things we can never be correct, but must invariably be in error” (NE II.6, 1107a10–15). There is a lot left unexplained in these remarks. For instance, what explains the baseness of murder (i.e., the intentional killing of an innocent human being) such that it always ought to be avoided? It does not seem enough to say that it undermines the “good functioning of the social group” (and the virtues that maintain this) and runs counter to our social nature (and the virtues that fulfill this), though these claims are true; rather, the baseness seems related to the violation of the inherent value of human life, which should be regarded as inviolable, irreplaceable, and reverence-worthy.¹² Murder, we might say, is a fundamentally “impious” or “irreligious” act, and even more so in the case Aristotle mentions of killing one’s own mother (given that piety or reverence is especially due to the sources of our existence): Rather than do this “we should suffer the most terrible consequences and accept death.”

Moreover, if as living in accordance with such absolute prohibitions is properly seen as necessary for our own fulfillment (*eudaimonia*), it is, I maintain, because we have accepted a strong evaluative understanding

¹² Hursthouse affirms that a neo-Aristotelian ethic should acknowledge some absolute prohibitions, though she does not explain their basis, except to appeal to Aristotle’s remark that the names or descriptions of certain acts “connote depravity” (or “baseness,” in the translation I used) (1999: 57–8, 72, 83–7). But what we need to know is: In virtue of what is something depraved? We see the same problem in Hursthouse’s remarks on the wrongness of killing: “What is wrong with killing, when it is wrong, may not so much be that it is unjust, violating the right to life, but, frequently, that it is callous and contrary to the virtue of charity” (6). This agent-centered explanation gets things backwards: Someone is callous in this case *because* he or she fails to be properly responsive to the value of human life (i.e., to its dignity or preciousness or sacredness). As we saw in Chapter 1, Foot also affirms a “limited moral absolutism” according to which “certain . . . actions are held to be such as to rule out circumstances in which it could ever be right to perform them.” Although she disagrees with Aristotle, Aquinas, and Anscombe with respect to some of what they rule out (e.g., adultery and lying), she does suggest that torture should be absolutely prohibited: “If the frequently unchallengeable description ‘torture’ applies to an action, then, whatever the circumstances, it is in my firm opinion morally ‘out’” (2001: 77–8). However, she doesn’t explain why this should be so, though the most natural explanation would involve an appeal to human dignity or the sanctity of human life (see fn. 25 in Chapter 1). Earlier she remarks: “Except in certain fairly rare cases, for instance of great suffering in a terminal illness, suicide is contrary to the virtue of hope” (74, n. 15). Again, there is no appeal to anything like human dignity or the sanctity of human life, which could generate a moral absolute here.

of it, for example, in terms of a righteous, holy, noble, upright life. But if we do away with appeals to a special moral (i.e., strong evaluative) ought and only accept an ordinary (i.e., disenchanted) ought, where virtuous actions are ultimately justified by their conduciveness to our flourishing as human beings, where this is understood on analogy with the flourishing of other living things, then it seems difficult to see how certain actions could be ruled out as such. Indeed, Anscombe continues the previously cited passage as follows:

[It] can be seen that philosophically there is a huge gap . . . which needs to be filled by an account of human nature, human action, the type of characteristic a virtue is, and above all of human “flourishing”. And it is the last concept that appears the most doubtful. For it is a bit much to swallow that a man in pain and hunger and poor and friendless is flourishing, as Aristotle himself admitted. Further, someone might say that one at least needed to stay alive to flourish. Another man unimpressed by all that will say in a hard case “What we need is such-and-such, which we won’t get without doing this (which is unjust) – so this is what we ought to do”. (1981: 41–2)¹³

In other words, it seems that there could always be exceptions made for the sake of the end of flourishing (this parallels a similar common critique of rule-utilitarianism). And so here Anscombe points to a fundamental inadequacy in the disenchanted Aristotelian view, given that she thinks justice requires acknowledging absolute prohibitions. In light of this inadequacy, she suggests the following as another possible reply to her question “whether one might ever need to commit injustice, or whether it won’t be the best thing to do?”:

The man who believes in divine laws will say perhaps “It is forbidden, and however it looks, it cannot be to anyone’s profit to commit injustice”; he like the Greek philosophers can think in terms of flourishing. . . . [If] he is a Jew or Christian, he need not have any very distinct notion: the way it will profit him to abstain from injustice is something that he leaves to God to determine, himself only saying “It can’t do me any good to go against his

¹³ Peter Geach provides what might be seen as an addendum to Anscombe’s remarks: “[Somebody] might very well admit that not only is there something bad about certain acts, but also it is desirable to become the sort of person who needs to act in the contrary way; and yet not admit that such acts are to be avoided in all circumstances and at any price. To be sure, a virtuous person cannot be ready in advance to do such acts; and if he does do them they will damage his virtuous habits and perhaps irreparably wreck his hard-won integrity of soul. But at this point someone may protest ‘Are you the only person to be considered? Suppose the price of your precious integrity is a most fearful disaster! Haven’t you got a hand to burn for your country (or mankind) and your friends?’ This sort of appeal has not, I think, been adequately answered on Aristotelian lines” (1978: 123).

law". (He also hopes for a great reward in a new life later on, e.g. at the coming of Messiah; but in this he is relying on special promises.) (42; cf. 61)

Given Anscombe's concern to combat consequentialism and given that she expresses strong doubts about the disenchanted form of Aristotelian ethics that she recommends to secular moral philosophers being able to ground absolute prohibitions, though she thinks a divine law conception of ethics can, it seems reasonable to conclude that Anscombe's ultimate aim in "Modern Moral Philosophy" is in fact to recommend a divine law ethic, at least as a needed supplement to an Aristotelian ethic in order to ground absolute prohibitions.¹⁴

It is noteworthy that MacIntyre does the same in an essay titled "On Being a Theistic Philosopher in a Secularized Culture" (2011). There he draws the following lesson from the famous claim made by the character Ivan Karamazov in Fyodor Dostoevsky's *The Brothers Karamazov* that if God does not exist, then everything is permissible:

Dostoevski through Karamazov was not saying, that atheists are free from all moral constraints, that, if atheism is true, anyone is morally free to do anything at any time. . . . [What] Dostoevski . . . was saying, was that, if we take atheism to be true, then there is no type of action, no matter how horrifying, of which we can be sure that we could never find good reason to perform it, that it would never be overwhelmingly and overridingly in what we took to be the general interest to perform it. Dostoevski . . . was not predicting Auschwitz or the Gulag. He was predicting the fire-bombing of

¹⁴ Julia Driver (2011) notes that the dominant reading of Anscombe's "Modern Moral Philosophy" has been "to read it straightforwardly as an indictment of the moral theories prevalent in the 1950s and a subsequent argument for the development of an alternative theory of morality that does not postulate a legislator, but then also does not try to keep the defunct legislative structure that naturally falls out of religiously based ethics. On this view we need to develop an alternative that is based on moral psychology, moral virtue, facts of human nature, and an account of the good for humans based on this approach." She supports an alternative reading where the article is seen "as a *modus tollens* argument intended to establish the superiority of a religious based ethics," understood as follows:

- P1: "If religious based ethics is false, then virtue ethics [understood in the way of the dominant ethical naturalist approach] is the way that moral philosophy ought to be developed."
- P2: "It is not the case that virtue ethics [so understood] is the way to develop moral philosophy [because it cannot account for moral absolutes]."
- C: "Therefore, it is not the case that religiously based ethics is false."

This seems to me the right reading as indicated by what I have said in this section. I think it was often taken the other way because many philosophers were already committed to a non-religious outlook (and Driver agrees).

Dresden and Tokyo, the saturation bombing of the Ruhr and the obliteration of Hiroshima and Nagasaki. He was predicting not the crimes of the obviously wicked, but the crimes of the apparently good, types of action that it is rational to prohibit unconditionally only if one is a theist. But it [is] just this kind of position that will appear at best groundless, at worst unintelligible, to those whose presuppositions are those of our secularized culture. (29–30)

MacIntyre thinks that the reason why it is rational for the theist to regard certain actions as absolutely prohibited is because on the theistic view “we are unconditionally bound to obey a certain rule not in spite of our interests and natural inclinations, but because of them . . . [Our] nature is such that our end is such that we cannot achieve it except by respecting a law to whose giver we are accountable” (29).

What should we make of Anscombe’s and MacIntyre’s appeals to divine law in order to ground absolute prohibitions? They do fit with what Sabina Lovibond identifies as an “element of anti-naturalism” in the idea of absolute prohibitions: “To say *fiat iustitia, ruat caelum* [‘let justice be done though the heavens may fall’] is to give hostages to fortune: if there is even so much as one moral requirement that we are seriously going to treat as absolute, i.e. as a requirement that is never to be called into question, then this policy is liable sooner or later to produce consequences which, by any normal human standards, will count as disastrous” (2004: 148). We can also see this “anti-naturalism” or “other-worldliness” of absolute prohibitions in the “worldliness” of Callicles’ response to Socrates’ claim in Plato’s *Gorgias* that it is better to suffer evil than to do evil: “Tell me Socrates, are we to take you as being in earnest now, or joking? For if you *are* in earnest, and these things you’re saying are really true, won’t this human life of ours be turned upside down, and won’t everything we do evidently be the opposite of what we should do?” (481c).¹⁵ There is certainly truth in this response, as there is a sense in which absolute prohibitions do run counter to the “ways of the world,” though we might regard this as counting in favor absolute prohibitions. And such prohibitions are also difficult to make sense of from within an ethics centered on the sort of disenchanted account of human flourishing that is put forward by a number of neo-Aristotelians. It is, thus, unsurprising that we find some who think that absolute prohibitions can only be grounded from within a religious framework.

¹⁵ See Gaita 2004 [1991]: 20 and ch. 12 (titled “Ethical Other-Worldliness”).

But how exactly are we to understand Anscombe's remark that "[it] can't do me any good to go against [God's] law," or MacIntyre suggestion that we cannot achieve our interests "except by respecting a law to whose giver we are accountable"? One possibility is suggested by Anscombe: Following God's law is a necessary condition for obtaining some "great reward in a new life later on," whereas failure to do so is subject to divine punishment. However, there seems to be something shallow about following God's law simply for the sake of reward and to avoid punishment. A better possible understanding for the claim that "[it] can't do me any good to go against God's law" is that it has to do with faith in divine providence, where God is seen as creating the world for good and as being on the side of the good and thus as working to ensure that good ultimately triumphs over evil. Thus, following God's law, which includes certain absolute prohibitions, is a matter of aligning ourselves with the will of God and ensuring that we are also on the side of the good and are helping to bring about the ultimate triumph of good over evil. Relatedly, it can also be a matter of achieving a right relationship with God, which the theist takes to be our highest good.¹⁶

These considerations no doubt give the theist compelling extrinsic reasons to live in accordance with absolute prohibitions (e.g., never intentionally kill an innocent human being), provided they have been divinely decreed, but they miss what should be seen as the intrinsic reason for these prohibitions: namely, that they concern things that are sacred or reverence-worthy and thus should be regarded as inviolable. For instance, the reason why we should never intentionally kill an innocent human being is because doing so violates the special dignity or sanctity of human life. The other theological considerations may provide additional motivational support, but unless a theist embraces theological voluntarism – where something is thought to be right or wrong simply *because* God willed it to be so, which would render morality arbitrary and undermine God's praiseworthiness and so should, I think, be rejected – he or she will believe that God decreed certain absolute prohibitions *because* they concern something that is sacred or reverence-worthy and thus should be regarded as inviolable. So there is a special moral (i.e., strong evaluative) ought here – an ought that

¹⁶ Candace Vogler mentions faith in divine providence as a basis for upholding absolute prohibitions, though she leaves the appeal somewhat vague (2012: 904–5); I have tried to clarify such an appeal here. Elsewhere she discusses the case of Thomas More and says of his choice to side with fidelity and obedience to God over King Henry VIII (which cost him his life): "It is a matter of siding with knowledge of one's nature, one's right relations with others, and the relation between humans and God" (2013: 256).

contains a “peculiar” or “mesmeric” force in that it makes unconditional demands upon us – not simply because something has been commanded by God, but because we can identify through strong evaluation a constitutive good: for example, human life as something inherently reverence-worthy for which we ought to show reverence, where doing so is constitutive of a normatively higher, more meaningful mode of life.

If this is so, then it is not clear that a non-theist could not have experiences of the sacred or the reverence-worthy that could ground absolute prohibitions. In fact, the force of Anscombe’s argument against consequentialism seems to depend on our having such experiences of the sacred or the reverence-worthy. Without this we might wonder why the consequentialist rejection of absolute prohibitions is so significant. We might imagine that a modern, secular moral philosopher, such as Peter Singer, could respond: “So what? We are well past such a superstitious conception of ethics and are better for it.” Such philosophers often regard their moral views as “enlightened” in comparison to traditional views that affirm the sanctity or special dignity of human life (as we saw in the passage from Singer cited earlier). Clearly Anscombe does not think such views are enlightened, but rather they are benighted; hence she charges consequentialists with having a “corrupt mind.” But this charge seems to presuppose that there is some *common anti-consequentialist moral perception* – for example, about the dignity or sanctity of human life such that “it cannot be right to kill the innocent as a means to any end whatsoever and that someone who thinks otherwise is in error” – and there is a natural potentiality to realize this through proper ethical formation, and we can fail to realize it because of corruption by bad moral theory.

In “Modern Moral Philosophy,” Anscombe does apparently accept a natural law ethic according to which God’s law is “written on our hearts” (as something to which our conscience bears witness), whether or not we are Jews or Christians or whatever else.¹⁷ She refers on two occasions (*en passant*) to the “natural divine law,”¹⁸ though this is never filled out and deployed in the main arguments of the essay. However, she does fill out the idea of a common anti-consequentialist moral perception

¹⁷ The phrase “written on our hearts” is adapted from Romans 2:14–15.

¹⁸ This phrasing is somewhat strange, as it seems to run together distinctions that Aquinas makes between: (1) the eternal law (i.e., the dictates of divine reason; the moral order of the universe); (2) natural (moral) law (i.e., the eternal law as grasped through human reason/conscience; it reveals our natural end); (3) the human (positive) law (it should be derived from the natural law and promote our natural end); and (4) the divine law (i.e., law revealed through special divine revelation, namely, in the scriptures; it reveals our supernatural end) (see ST I–II, q. 91).

(which can be seen as an integral part of the natural moral law that is written on our hearts) in her later work, as we have seen, with her appeal to “mystical perception,” which she says is “as common as humanity,” and is involved, for example, in the “supra-utilitarian” virtue of “respect for life,” which can be seen as part of the virtue of piety. Although the prohibition on murder certainly “makes life more commodious,” Anscombe says: “everybody perceives quite clearly that the wrong done in murder is done first and foremost to the victim, whose life is not inconvenienced, it just isn’t there any more. He isn’t there to complain: so the utilitarian argument has to be on behalf of the rest of us. Therefore, though true, it is highly comic and is not the foundation: the objection to murder is supra-utilitarian” (2008: 187). We have also seen that elsewhere she speaks similarly of a “religious attitude” of “respect before the mystery of human life” – or what we can also call the sacredness or reverence-worthiness of human life – which is “not necessarily connected only with some one particular religious system.” Indeed, we saw how Raimond Gaita, who is not religious (in any conventional sense), seeks to hold onto something like a religious attitude of reverence for human life, as does Cora Diamond in her appeal to “the feeling of solidarity in mysterious origin and uncertain fate,” which binds us to all humanity, including the dead, the unborn, and the severely afflicted. In a recent essay, “The Problem of Impiety” (2017), Diamond seeks to show how certain ways of acting – she discusses suicide, genetic engineering, and other issues – can be absolutely ruled out as *impious* without appealing to divine prohibition, and in doing so she draws on Anscombe’s discussion of “mystical perception” and the “religious attitude” of reverence for human life.

These ideas, I contend, mark an important conceptual advance – over appeals to divine law – for understanding absolute prohibitions and a special moral (i.e., strong evaluative) ought. Of course it might be that appeals to “mystical perception” or a “religious attitude” of reverence for human life ultimately require some particular cosmic outlook that can make sense of them, and without this there can be a deflationary effect on our experiences of the sacred or the reverence-worthy and other strong evaluative experiences. And we might think that a theistic world-view in particular is best able to ground a sense of the sacredness or the reverence-worthiness of human life, as seems to be suggested by Anscombe when she says: “A religious attitude [of reverence for human life] may be merely incipient, prompting a certain fear before the idea of ever destroying a human life, and refusing to make a ‘quality of life’ judgment to terminate a human being. Or it may be more developed, perceiving that men are made

by God in God's likeness, to know and love God" (2005: 269–70). I will take up this issue of cosmic outlooks in Chapter 4. But what I want to emphasize for now is that there is a common anti-consequentialist moral perception (namely, our sense of the sacred or the reverence-worthy) that we need to take account of. Indeed, although I have acknowledged that absolute prohibitions are in a sense "anti-natural" in that they run counter to the "ways of the world" and they are difficult to make sense of from within an ethics centered on a disenchanted account of human flourishing, there is another sense in which the recognition of such prohibitions is completely "natural" to human beings (i.e., it is "as common as humanity") and hence such prohibitions have been a central feature of traditional conceptions of morality (see McPherson 2017a).

But might there be other ways of affirming absolute prohibitions apart from invoking the concept of the sacred (i.e., the reverence-worthy)? Sabina Lovibond – who we saw raised the issue of anti-naturalism – seeks to defend absolute prohibitions not only apart from divine law and divine promises, but also apart from appeals to the sacred or the reverence-worthy. Instead, she attempts to show how such prohibitions can be seen as an important part of a tradition-informed ethical way of life.¹⁹ She writes:

The customs of our ethical "ancestors", interpreted as best we can from our own historical standpoint and held up to scrutiny against the background of a constant awareness of our own limitations: . . . these seem to be the available sources for a code of human conduct within which some actions would be excluded from consideration, though not because a supreme being had given orders to that effect. . . . [Some] people . . . manage to remain at their posts – to keep the "commandments" of the morality they acknowledge – even without hope: at any rate without the hope that things

¹⁹ Lovibond is influenced by McDowell's second nature naturalism; see her book *Ethical Formation* (2002). However, we should note that McDowell himself does not accept absolute prohibitions, since he endorses the non-codifiability of ethics where what is ethically required of us is determined in each situation by the operations of a virtuous sensibility (see 1998: ch. 3). For example, he writes: "A kind person has a reliable sensitivity to a certain sort of requirement that situations [e.g., encounters with someone in need] impose on behavior" (51). But McDowell doesn't say what it is about human beings that makes them *worthy* of our concern; he thinks having the relevant sensitivity is enough. I don't think it is: What he overlooks is how our sensibility can and should recognize the special dignity or sanctity of human life and thereby affirm absolute prohibitions such that we ought never to kill (or torture or maim or otherwise gravely harm) intentionally an innocent human being. These prohibitions are "codifiable," even though we can affirm that much else in the ethical life is not. McDowell holds that a "reasonably adult moral outlook" does not admit of codification, and he cites Aristotle's remarks about how the best generalizations in ethics hold only for the most part (58). But this generalization itself holds only for the most part, since we have seen that Aristotle does in fact affirm absolute prohibitions.

will turn out all right for them ... How do they do it; what is their incentive? Perhaps it is simply that they have become accustomed, or even attached, to the post in question and lack the desire to make alternative arrangements. (2004: 157–8)

This passage recalls Foot's remarks (discussed in Chapter 2) about being volunteers in duty's army because of the way that moral beliefs are able to arouse our devotion. Stuart Hampshire also writes about how certain "conduct is impossible as destroying the ideal of a way of life that one aspires to and respects, as being, for example, utterly unjust or cruel or treacherous or corruptly dishonest" (1983: 90). And David Wiggins writes about being "bound by our moral nature, i.e., bound by those sentiments without which ... we should not recognize ourselves" (1995: 310; cf. 2006: 135, 234–5). In all these cases the idea is that avoiding certain actions is a necessary condition (a "practical necessity") for maintaining our moral identities. But we can ask the further question: Why should I have *this* (or *that*) particular moral identity?

A worry can arise here about the contingency of our moral beliefs (an issue that will be explored in greater detail in Chapter 4), which if recognized can have a deflationary effect. As Bernard Williams says: "This sense of contingency can seem to be in tension with something that our ethical ideas themselves demand, a recognition of their authority" (2002: 21). Perhaps one way to get around this worry about contingency is if we can show that our moral beliefs (and thus our moral identities) are at least partially based on what we think we need in order not to fall into a state of moral anarchy where everything is permitted. Hampshire seems to take this approach when he writes: "In arguing against utilitarians I must dwell a little on these epithets usually associated with morally impossible action, on a sense of disgrace, of outrage, of horror, of baseness, of brutality, and, most important, a sense that a barrier, assumed to be firm and almost insurmountable, has been knocked over, and a feeling that, if this horrible, or outrageous, or squalid, or brutal action is possible, then anything is possible and nothing is forbidden, and all restraints are threatened" (1983: 89). But such epithets themselves depend upon there being features of the world that make them appropriate and which demand certain responses, and they can't just be based on the thought that without certain moral beliefs we will fall into moral anarchy, which is a consequentialist form of reasoning (akin to rule-utilitarianism) and so cannot be used to argue against consequentialism. Take again the case of murder: What is horrible about murder isn't simply that if we allow it then we will fall into a state of moral anarchy (though this may be true, at least if it becomes widespread

enough); rather, as Anscombe says, “the wrong done in murder is done first and foremost to the victim.” And to make sense of this wrong we need to appeal to the sacredness or reverence-worthiness of human life such that it is properly regarded as being inviolable. The objection to murder, then, is “supra-utilitarian.” My general line of contention seems to hold: In order to justify and make sense of absolute prohibitions we need to appeal to the strong evaluative category of the sacred (i.e., the reverence-worthy).

Wiggins seems to acknowledge this by making conceptual space for a sense of the mysteriousness of human life (where this is equivalent to a sense of sacredness).²⁰ Central to our “moral nature,” he thinks, is a capacity for solidarity that responds to the “indefinable influence” that other human beings have upon us (which recalls Anscombe’s “mystical perception” and Diamond’s comments about solidarity and its connection to “the sense of mystery surrounding our lives”).²¹ We can see this

²⁰ Lovibond seems intent on closing off this conceptual space. Consider, for example, her response to some remarks by Cora Diamond, where she is discussing *Grimm’s Fairy Tales*. Diamond writes: “I have a sense of something terrible when I read *The Fisherman and His Wife*. In the tale the Fisherman spares the life of a Flounder who is really an enchanted prince, and is then sent by his wife to get the Flounder to carry out various wishes of hers: she begins by wishing her way into a decent little hut, and ends by wishing to be God, finding it an offense that the sun and moon should rise whether she wills it or not” (2000: 166). Diamond sees Wilhelm Grimm as depicting a kind of “unapproachable evil” here and in other fairy tales, which seems to require a distinction between “supernatural” and “natural” (i.e., ordinary, approachable) evil. However, she thinks a lot of people today wrongly avoid making such distinctions in their thoughts because of seeing this as a matter of “mere sensibleness, reasonableness, down-to-earthness, matter-of-factness, rational disdain for mystery and mysticism; in other contexts, as being fair, being liberal-minded and sympathetic” (171). Lovibond responds: “[Worrying] as it is to have to suspect oneself of complicity with the merely sensible or down-to-earth, the invocation of the category of *supernatural* evil ... seems subjective and unconvincing. ... [Why] should we feel bound to endorse a psychology so impoverished as to banish to a supposedly ‘supernatural’ realm the menacing intimations of moral anarchy ...? Why not equally well hear it as an invitation to picture ourselves as inhabitants of a pre-Christian (or post-Freudian) ‘world,’ in which ‘nature’ can encompass not just the savagery of seas and winds, but the darker and more terrible contents of the heart?” (2007: 318). Like Hampshire, Lovibond here seems to take moral anarchy to be the primary concern with regard to human willfulness. However, I don’t think her appeal to Freudian depth psychology suffices to account for the terrible nature that is at issue in the kind of human willfulness that Diamond is discussing. The worry about our willfulness is not just about the possibility of moral anarchy in which anything goes (though there is a genuine concern here); rather, it is about the terrible nature of what we may transgress against, that we may violate that which should be regarded as inviolable, that is, the sacred or the reverence-worthy. And hence the evil at issue seems “unapproachable,” which may incline us to make use of the language of the “supernatural.”

²¹ The phrase “indefinable influence” is Simone Weil’s. She characterizes it as follows: “Anybody who is in our vicinity exercises a certain power over us by his very presence, and a power not exercised by him alone, that is the power of halting, repressing, modifying each movement that our body sketches out. If we step aside for a passer-by on the road, it is not the same thing as stepping aside to avoid a bill-board” (quoted in Wiggins 2006: 243). It is noteworthy that Wiggins, Gaita, and

especially in the “primitive aversion from acts that appear as a direct assault by one personal being upon another, acts such as murder, wounding, injury, plunder, pillage, the harming of innocents, the repaying of good with gratuitous evil, false witness . . . [Such] acts pass beyond the valuations bad, disappointing, . . . lamentable, and trespass onto the ground marked forbidden” (Wiggins 2006: 246–7; cf. 11, 222). The failure to recognize some actions as “utterly forbidden,” Wiggins maintains, “menaces the very fabric of the ethical by threatening to destroy the basis of the ethical in solidarity” (248). I take his concern here not just to be about falling into moral anarchy, but more fundamentally it is about lacking proper responsiveness to other human beings. This suggests that a lack of acknowledgement of absolute prohibitions is much more corrosive of the ethical life than MacIntyre acknowledges (as we saw in his remarks on absolute prohibitions). The sort of solidarity to which Wiggins appeals and which involves recognition of some actions as utterly forbidden is at “the root of ethical” in that it is the condition for the possibility of any genuine ethical life whatsoever: “Human solidarity is not an ordinary human pursuit. Its role is to condition, to civilize, and to humanize human pursuits” (2008: 18). Utilitarians like Singer also depend upon human solidarity for whatever appeal their quality of life assessments possess, but they end up undermining this solidarity in their willingness to come out against their fellows whenever it serves some supposedly more beneficial outcome.²²

Spheres of Other-Regarding Concern: Universal and Particular

The appeal here to human solidarity brings us to a final issue that I want to explore, which has to do with what we owe in terms of positive assistance to other human beings simply in virtue of being human, and how we should balance universal human concern with more particular forms of other-regarding concern, such as for family, friends, and fellow citizens. This is an area where again I think we need to go beyond the disenchanted form of neo-Aristotelian ethical naturalism.

As we have seen, for many neo-Aristotelians the other-regarding virtues (justice, generosity, etc.) find their point primarily in promoting the

Diamond are all influenced at key points by religious mindsets, even though they are not (conventionally) religious themselves: for Wiggins it is Weil, for Gaita it is the example of the nun, and for Diamond (in “The Problem of Impiety”) it is Anscombe on “mystical perception.”

²² Regarding the phrase “come out against their fellows,” see fn. 25 in Chapter 1 (cf. Wiggins 2006: 240–1).

“good functioning of the social group,” that is, the flourishing of the particular communities (e.g., family, friendships, local community, etc.) of which we are a part, which ultimately enables our own flourishing. However, they often allow that these virtues, once acquired, have application beyond our particular communities. We saw this in MacIntyre’s account of hospitality for strangers and compassion for those in dire need outside of our particular communities. These other-regarding virtues are often exercised for the sake of others and for their own sake (because it is what a hospitable or compassionate person would do), but we saw that MacIntyre thinks that these virtues ultimately refer back to our own communal and individual flourishing for their justification. As noted earlier, MacIntyre thinks that a key index for the well-being of any community based on a network of relationships of giving and receiving is how its members treat the young, the old, the severely afflicted, the stranger, and those in dire need (regardless of having any prior relationship to them or not). But this brings us back to the question of whether this gives us the right reason for such concern. What I will suggest is that since the disenchanted form of neo-Aristotelian ethical naturalism does not properly recognize other human beings as being *intrinsically worthy* of concern *for their own sake* in virtue of some view of human dignity or the sanctity of human life, it cannot be properly responsive to the demands for universal and particular human concern. However, I will also argue that the two dominant universalist ethical approaches today, utilitarianism and Kantianism, also are not properly responsive to the demands for universal and particular human concern.

In exploring these issues, I want to begin by considering the Parable of the Good Samaritan from the Gospel of Luke (10:30–7) in the New Testament. The set up to the parable is that a lawyer, who is wanting to justify himself, asks Jesus regarding the biblical commandment to love your neighbor as yourself: “Who is my neighbor?” Jesus replies with the parable:

A certain man went down from Jerusalem to Jericho, and fell among thieves, which stripped him of his [clothing], and wounded him, and departed, leaving him half dead. And by chance there came down a certain priest that way: and when he saw him, he passed by on the other side. And likewise a Levite, when he was at the place, came and looked on him, and passed by on the other side. But a certain Samaritan, as he journeyed, came where he was: and when he saw him, he had compassion on him, and went to him, and bound up his wounds, pouring in oil and wine, and set him on his own beast, and brought him to an inn, and took care of him. And on the

morrow when he departed, he took out two pence, and gave them to the host, and said unto him, Take care of him; and whatsoever thou spendest more, when I come again, I will repay thee. Which now of these three, thinkest thou, was neighbour unto him that fell among the thieves?

The lawyer responds with the obvious: "He that shewed mercy on him." And then Jesus says to him: "Go, and do thou likewise."²³

What we should first note about the parable is that Jesus turns the question on the lawyer, changing it from "Who is my neighbor?" to "Who was a neighbor to the man in need?" Here the concept of "neighbor" is *moralized*. Rather than identifying those who live nearby, it represents a normative ideal: *We* ought to be a "neighbor" to everyone, including strangers, we come across. In other words, we should be ready to act with solidarity for any human being in need, since they are human beings with equal intrinsic dignity (on the biblical worldview, this dignity is due of course to their being made in the image of God). We also see here that this moralization is the basis for the widely-recognized universalization of the concept of neighbor in the parable: It is not to be limited to members of one's own political, ethnic, or religious community. It is the Samaritan, an "outsider," who responds correctly.

But importantly, the proximity or tangible nearness of the person in need – "when he saw him, he had compassion on him" – also seems to matter here, as the concept of "neighbor" suggests. Indeed, G. K. Chesterton remarks:

[The] old religions and the old scriptural language showed so sharp a wisdom when they spoke, not of one's duty towards humanity, but one's duty towards one's neighbour. The duty towards humanity may often take the form of some choice which is personal or even pleasurable. That duty may be a hobby; it may even be a dissipation. We may work in the East End because we are particularly fitted to work in the East End, or because we think we are; we may fight for the cause of international peace because we are very fond of fighting. . . . But we have to love our neighbour because he is *there* – a much more alarming reason for a much more serious operation. He is the sample of humanity which is actually given us. Precisely because he may be anybody he is everybody. He is a symbol because he is an accident. (1986[1905]: 140)

We can bring out the significance of this passage by considering the contrast with utilitarian and Kantian approaches to ethics and how they might think about the Parable of the Good Samaritan.

²³ I have used the King James Version here, though I've inserted "clothing" for "raiment."

Mill claims to find in Jesus' teachings "the complete spirit of the ethics of utility": "'To do as you would be done by,' and 'to love your neighbor as yourself,' constitute the ideal perfection of utilitarian morality" (2001 [1861]: 17). Of course, by "love your neighbor as yourself" Jesus hardly seems to have meant "maximize happiness (understood in hedonistic or preference-satisfaction terms) and minimize unhappiness for all sentient beings." Mill also doesn't bother to engage here with the clearly anti-utilitarian remarks of Jesus, such as his rhetorical question (discussed in Chapter 2) "what does it profit a man to gain the world but forfeit his soul?" It is clear that the utilitarian would find in the Parable of the Good Samaritan a message about the goodness of compassion that should encourage us to promote the greatest happiness for the greatest number of sentient beings (see Singer 2009: 19ff). However, there is in fact some question as to whether the utilitarian would think that the Good Samaritan acted correctly, since the care he provided for a single human being in need was rather extravagant, and one might wonder whether it is in keeping with what Peter Singer (2015) calls "effective altruism," which is concerned with doing the most good (understood in utilitarian terms). If we place the parable in a contemporary context, the utilitarian might think that the Good Samaritan's time would be better spent attending to the demands of a lucrative career with the aim of donating the earnings to the most effective charities (and we might imagine that the Good Samaritan was on his way to a business meeting in which millions of dollars would be secured when he encountered the man in need). While the utilitarian would praise the Good Samaritan's compassion in the original parable and regard such compassion as a motivational source for the utilitarian ethic, he or she wouldn't necessarily think that going around acting like the Good Samaritan did in the original parable is the most effective use of one's time and resources. A utilitarian or "effective altruist" would want us to be "rational" about our compassion and so a utilitarian calculation should be undertaken to determine what the most good we can do is.

Here again the utilitarian seems to go against a key source of his or her own ethical life. In some cases utilitarianism requires us to deny human solidarity and steel ourselves in relation to our basic compassionate responses to particular human beings. The Good Samaritan, I believe, offers a superior moral standpoint because he does not undermine a key source of the ethical life, found in human solidarity, but rather demonstrates what such solidarity should look like in action: We should respond with solidarity to someone in dire need that we encounter face-to-face "because he [or she] is *there*" and we recognize a dignity or sanctity in every

human life. To fail to do so would seem to be close to as much (if not just as much) of a failure of human solidarity and a failure to respond to the respect-worthiness of another human being as are acts that are “a direct assault by one personal being upon another.”²⁴ In his reflections on the parable, Peter Winch remarks that the Good Samaritan, as he interprets him (rightly in my view), responds compassionately to “what he sees as a *necessity* generated by the presence of the injured man.” In other words, he experiences – in a way that the priest and Levite who passed by on the other side evidently do not – a kind of impossibility that is expressed in the thought “I can’t just leave him here to die” (1987: 157). And this is not subject to any utilitarian calculation.²⁵

I think the proper moral lesson of the Parable of the Good Samaritan is that we can be strictly obligated to help when we encounter a fellow human being in dire need (I say “can” because there may be circumstances where another consideration is overriding, such as where our own life is threatened). Again, the proximity or nearness of the person in need is important here (as suggested by the term “neighbor”). However, it remains a question whether we also owe something to others in need (dire or otherwise) who are not near to us, but instead live far off in another place. Utilitarians like Peter Singer maintain that proximity should not matter, since what is important is that we maximize happiness and minimize unhappiness for the greatest number of sentient beings. When maximizing happiness and minimizing unhappiness we should be impartial between whether it is our own happiness, or our child’s, or a fellow citizen’s, or that of someone on the other side of the globe. The key claim that Singer makes with regard to the problem of world poverty is the following: “If it is in your power to prevent something bad from happening, without

²⁴ The quotation is from the passage from Wiggins cited earlier. Jeremy Waldron writes (in a way that recalls Wiggins on solidarity): “I believe that an element of recognition plays an important part in explaining the grip that the parable of the Good Samaritan has on us. I have emphasized proximity, and in that connection we may consider the importance of sight in the way the parable is presented – the immediate visibility of the predicament of the man who fell among thieves. The priest ‘saw’ him, the Levite ‘came and looked on him,’ and the Samaritan ‘when he saw him, he had compassion on him.’ . . . The suffering and injury they could see was close enough to make a direct appeal to their sympathy: it was there, *in their face*, so to speak. . . . Now, it is a fact of our common humanity that these appeals *in extremis*, and the mutual recognition that they express and that they evoke, . . . depend only on the sheer fact of one human being confronting another and mouthing a cry for help. . . . It is an elemental matter of morality: the unmediated (as opposed to the abstract) face of humanitarianism, the direct moral appeal of one human being to another” (2003: 349–50).

²⁵ I am grateful to John Cottingham for a conversation that helped to shape my thinking in this paragraph. I am also indebted to his essay “Loving Kindness and Mercy: Their Human and Cosmic Significance” (2019).

sacrificing anything nearly as important, it is wrong not to do so" (2009: 15). In fact, given the impartiality requirement of utilitarianism, it seems that we would be strictly required to sacrifice our own lives or become completely destitute if this would increase the overall sum total of happiness in the world. But Singer's principle is quite demanding as it is.

Indeed, it is impossibly demanding (Singer himself acknowledges that he doesn't fully live up to it), as attempting to help everyone would be self-alienating and self-mutilating because of undermining the particular relationships and projects that give meaning to our lives (see Williams 1973: 95–118; 1981: ch. 1; Cottingham 2010). Moreover, here again I think utilitarianism ends up undermining a key source of the ethical life. As Michael Sandel puts it: "The love of humanity is a noble sentiment, but most of the time we live our lives by smaller solidarities. This may reflect certain limits to the bounds of moral sympathy. More important, it reflects the fact that we learn to love humanity not in general but through its particular expressions" (1996: 342–3). In other words, we learn to love humanity by loving the particular human beings who are *there* before us in our lives, such as a child, or spouse, or parent, or sibling, or next-door neighbor, or the stranger in need before us, and so on, and who may not always be easy to love. Furthermore, there is a danger in an abstract or general love for humanity in that it may lead us to neglect the particular human beings who are *there* before us, and thus we may love *no one in particular*. Charles Dickens famously satirizes this phenomenon in his depiction of the character Mrs. Jellyby in *Bleak House*, who neglects her own children because of her concern for far off charitable causes. Dickens says of her "telescopic philanthropy": "[her eyes] had the curious habit of seeming to look a long way off. As if . . . they could see nothing nearer than Africa!" (1971 [1853]: 53; see Sandel 1996: 343). There is in fact an even greater danger that in our abstract or general "love" for humanity we may in fact come to hate particular human beings because of the ways they always disappoint us and are difficult to love, or we may see them as able to be sacrificed for some supposed "greater good."

So it is important that we learn to love humanity through its particular instantiations (i.e., that we proceed to the universal through the particular), and also that any love for humanity ultimately find expression in love for particular human beings. And when we do love particular human beings, including those who are *there* in our lives such as family, friends, and fellow citizens, we will form identity-constituting attachments and ways of belonging. Thus, if we were required to sacrifice such attachments, then this would again be a form of self-mutilation. And it does not suffice

to say that we'd be better off not forming such attachments in the first place; as Sandel says: "To imagine a person incapable of constitutive attachments such as these is not to conceive an ideally free and rational agent, but to imagine a person wholly without character, without moral depth. For to have character is to know that I move in a history I neither summon nor command, which carries consequences nonetheless for my choices and conduct. It draws me closer to some and more distant from others; it makes some aims more appropriate, others less so" (1984: 90-1). In other words, we find ourselves already morally "encumbered" by virtue of our relationships with the human beings who are there in our lives. But Sandel also says: "To affirm as morally relevant the particular communities that locate us in the world, from neighborhoods to nations [and we can add families as well], is not to claim that we owe nothing to persons as persons, as fellow human beings. At their best, local solidarities gesture beyond themselves toward broader horizons of moral concern, including the horizon of our common humanity" (1996: 343). The challenge then is to work out in the course of our lives which normative demands should be given priority.

David Oderberg provides what I think is a good rule of thumb for how we should direct our charity (i.e., our good deeds for others): "the closer the relationship and the more severe the need, the greater the obligation of charity" (2008: 64; cf. *Summa Theologiae*, II-II, q. 31, a. 3; q. 26, aa. 6-8; q. 31, a. 2). This means that in some cases we will have to give preference to the dire needs of a stranger over the less pressing needs of a family member or a friend, especially if there is a close connection to that stranger in virtue of his or her proximity (i.e., he or she is *there* before us). In regard to cases of more distant need, much will have to be left to discretion since it is not possible to help everyone. But "leaving it to discretion" does not necessarily mean that we can do nothing and be regarded as blameless; it means seeking to determine how best to act in the different circumstances of our lives, given the different considerations that need to be weighed against each other, and given that we accept the message of the Parable of the Good Samaritan that we ought to be disposed to be a neighbor to everyone we come across (i.e., we should be ready to act with solidarity for any human being in need because of his or her inherent dignity). And this will of course require the difficult work of practical wisdom.

One problem with utilitarianism and Kantianism is that they wrongly lessen the difficulty of this work. As we have seen, utilitarianism always gives priority to universal concern, but in doing so it fails to recognize the moral significance of particular relationships and it is too demanding. Like

utilitarianism, Kantianism also does not seem to recognize particular relationships as having moral significance as such, since it focuses on the requirement of universalization (can our actions be accepted by all rational agents?) and treating human beings as “ends in themselves” (i.e., as having dignity). But it seems to have an advantage over utilitarianism in being less susceptible to the charge of being too demanding in what it requires us to do on behalf of others. However, it is also susceptible to the charge of not being demanding enough. For Kant, beneficence is an *imperfect duty*. In contrast to a perfect duty (e.g., not to kill), which imposes absolute (or “strict”) requirements, imperfect duties concern actions that are not strictly required but rather are encouraged and are especially praiseworthy (Kant 1993 [1785]: 30–2, 36–7). One should act beneficently sometimes, but when to do so is up to each person (at least this is a standard reading of Kant on beneficence as an imperfect duty). A key reason why beneficence is seen as an imperfect duty, I think, is because there are so many in need and no human being can help everyone. Since “ought implies can,” helping everyone in need cannot be strictly required. However, if we consider Good Samaritan-type cases where we come across someone in dire need, is it really right to say that there cannot be a strict obligation here? When the priest and the Levite pass by on the other side and do not come to the aid of the injured man, are they really morally off the hook? Do we really say: “It’s ok. While you’re encouraged to help and we’d praise you if you do, you aren’t blameworthy if you don’t. It’s not strictly required”? That does not seem right.²⁶ Again, leaving someone to die, when you are uniquely positioned to help the person by virtue of proximity and ability, seems like it is close to as much (if not just as much) of a failure of human solidarity and a failure to respond to the

²⁶ Judith Jarvis Thomson oddly uses the idea of being a Good Samaritan as an instance of supererogatory action in her defense of abortion (1971: 62–6). She distinguishes between the “Minimally Decent Samaritan” (who helps someone nearby in dire need when it involves very little burden), the “Good Samaritan” (who helps someone nearby in dire need even when it involves a significant burden), and the “Splendid Samaritan” or “Very Good Samaritan” (who helps someone nearby in dire need even at risk to his or her own life). She writes: “I have been arguing that no person is morally required to make large sacrifices to sustain the life of another who has no right to demand them, and this even where the sacrifices do not include life itself; we are not morally required to be Good Samaritans or anyway Very Good Samaritans to one another” (64). In saying this she is of course standing athwart the teachings of Jesus. In regard to the issue of abortion, it should also be noted that there is a crucial disanalogy with the Parable of the Good Samaritan, as the issue of abortion concerns not just whether we should come to the aid of another human being (who is one’s own child) but also whether it is morally permissible to take early human life intentionally.

respect-worthiness of another human being as acts that are “a direct assault by one personal being upon another.”²⁷

A related problem with Kant’s approach here is that he does not think we are morally required to cultivate the kind of compassionate disposition that the Good Samaritan possesses, since he maintains: “love as an inclination cannot be commanded: but beneficence from duty, when no inclination impels us and even when a natural and unconquerable aversion opposes such beneficence, is practical, and not pathological, love. Such love resides in the will and not in the propensities of feeling, in principles of action and not in tender sympathy; and only this practical love can be commanded” (Kant 1993 [1785]: 12). But it seems clear that Jesus is enjoining the “pathological love” (i.e., love with feeling – is there any other kind?) of the Good Samaritan, and it also seems clear that it is only in light of this sort of compassionate response that we can understand the experienced impossibility of not helping someone in dire need before us, which is expressed in the thought “I can’t just leave him here to die.”

Neo-Aristotelians, I believe, have an important advantage over utilitarians and Kantians in that they have more resources to account for the importance of particular attachments. For instance, in countering Peter Singer’s view of impersonal benevolence (which “knows no species-boundaries and no special bonds of family or friendship”) as a virtue, Hursthouse writes (in a passage already appealed to in Chapter 1): “it rather looks as though the species and familial bonding that are part of our biological, animal nature, and make us ‘partial’ to our own species and children, play an essential role in sustaining [the ends of the continuance of the species and the good functioning of the social group]” (1999: 224–5). She also defends loyalty as a virtue – which extends beyond familial bonds to include bonds with the members of other particular communities of which one is a part – since it fosters “the good functioning of the social group and the sort of personal relationships which can be one of our greatest sources of joy” (234). But, while she rejects Singer-style *impersonal* benevolence, she accepts charity (or benevolence) as a virtue insofar as it promotes our natural ends as social animals: “Charity directed to the young and helpless particularly serves the continuance of the species; directed more widely it serves the good functioning of the social group

²⁷ Responding to the problems associated with Kant’s account of beneficence as an imperfect duty in regard to cases of dire need, Karen Stohr offers a Kantian solution that is in line with the view I am advancing. She writes: “although we are not always required to help, we are always required not to be indifferent. When helping someone is the only way not to be indifferent to her, we are required to help” (2011: 62).

by fostering the individual survival, freedom from pain, and enjoyment of its members, and also by fostering its cohesion" (209). Hursthouse does not provide a precise definition of charity here, but she seems to affirm something like Foot's understanding of charity as a virtue that "attaches us to the good of others" (Foot 2002a: 45) and is concerned with rendering assistance to those in need.²⁸ Given the focus on promoting the good functioning of one's social group, we might wonder how such a conception of charity would apply to Good Samaritan-type cases where we confront someone in dire need who is not a member of our group. Hursthouse would certainly want to say that cultivating the virtue of charity, which is justified as a virtue because of promoting our natural ends as social animals, has application beyond one's social group, and so would have application in Good Samaritan-type cases. This is even clearer in the discussion of MacIntyre earlier in this chapter, where he focuses on *miser cordia* (i.e., compassion or pity) as an aspect of charity (i.e., love of neighbor) that "has regard to urgent and extreme need without respect of persons." But, as we saw, ultimately this is justified as a virtue in terms of promoting our own individual flourishing through promoting the flourishing of our social networks of giving and receiving.

What seems missing in these accounts is a recognition of the point that Peter Winch makes about the Good Samaritan: namely, that he responds compassionately to "what he sees as a *necessity* generated by the presence of the injured man" that is expressed in the thought "I can't just leave him here to die" (1987: 157). Like Lovibond on absolute prohibitions, Winch sees a kind of "anti-naturalism" (or "other-worldliness") operative here, since he doesn't think the Good Samaritan's experience of ethical necessity can be accounted for within a naturalistic framework of the sort suggested by Anscombe and taken up by Foot, Hursthouse, MacIntyre, and others. He writes: "A naturalistic account of moral necessities would be one which treated them as limits on the possibilities of an agent's achieving ends which, either as a particular individual or, at the other extreme, as a member of the human race, he is presumed to have. Roughly speaking, this is to treat such modalities as imposing limits not on what someone may *will*, but on what the will is capable of *carrying into effect*, given its presumed fundamental motivation" (158–9). The idea here seems to be that these limits are necessary precisely for best achieving pre-given naturalistic ends; they are what Anscombe calls "Aristotelian necessities." But

²⁸ In *Natural Goodness*, Foot says: "if charity is a virtue, this is because it makes its possessor's action good in the area of aims such as the relief of poverty" (2001: 12–13; cf. 2002a: 4, 165).

Winch remarks: “[The] Samaritan is depicted as reacting with compassion without asking any questions. . . . It is a reaction expressing the Samaritan’s conviction that it was *necessary* to help the traveller, that *nothing else was possible* in the circumstances” (159). In other words, this moral response is not derived from a determination about what will best serve pre-given naturalistic ends; rather the relationship goes the other way: Such engaged responses to the moral demands made upon us by another human being *shape* our conception of our ends – they are *constitutive* of our conception of a good human life. Winch concludes:

[We] might say, the priest and the Levite saw something different from what the Samaritan saw when they came upon the injured man in the roadway. We might say: they did not see a neighbour in him. . . . My central point is that in questions concerning our understanding of each other our *moral* sensibility is indeed an aspect of our *sensibility*, of the way we see things, of what we make of the world we are living in. (166)

I would add that what the moral sensibility exemplified by the Good Samaritan – and also by Gaita’s nun, discussed earlier – reveals to us is the special dignity or sanctity of all human life, which is what allows us to see a stranger in dire need as a neighbor.²⁹

Without this sense of the special dignity of human life we cannot properly make sense of Good Samaritan-type cases, or ground the demands for universal human concern, or know how to weigh such demands with the demands for more particular forms of concern. Moreover, I have argued that this recognition of human dignity is important for properly showing concern for others for their own sake, for keeping all human beings “fully amongst us,” and for grounding moral absolutes. But I have also suggested that such claims about human dignity only make sense against some background understanding of our place in the cosmos, and it is to the exploration of such cosmic outlooks that we will now turn.

²⁹ Winch seems to affirm such special dignity or sanctity when he writes: “[It] is an important fact about us that our reactions to each other are in all sorts of ways quite different from our reactions to anything else. In the present context its importance lies in its connection with our understanding of the kinds of creature we are having commerce with” (1987: 163). Here he clearly seems to be channeling Weil and her remarks about the “indefinable influence” of other human beings on us (see fn. 21). He also appeals to Wittgenstein’s remark: “My attitude to [another human being] is an attitude towards a soul” (165).